

24NNCV00859 24NNCV00859

County: los-angeles

Division: Civil Law and Motion

Department: D

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Case Number: 24NNCV00859 Hearing Date: July 10, 2026 Dept: D

TENTATIVE RULING

Calendar: Add-on

Date: July 10, 2026

Case No: 24NNCV00859 Trial Date: September 8, 2026

Case Name: Garabetian v. Khachatryan, et al.

MOTION TO BE RELIEVED AS COUNSEL

[CCP § 284]

Moving Party: Robert L. Booker II, counsel for Plaintiff

Responding Party: Plaintiff, Garo Garabetian [Unopposed]

RELIEF REQUESTED:

Leave for counsel to be relieved as Plaintiff's attorney of record in this action.

CAUSES OF ACTION: from Form Complaint

1) Motor Vehicle Negligence

2) General Negligence

SUMMARY OF FACTS:

This action arises from an alleged motor vehicle accident. Garo Garabetian ("Plaintiff") alleges that on April 10, 2022, near 10500 Penrose Street in Sun Valley, California 91352, Anna Khachatryan and Vick Khachatryan ("Defendants") and each of them, negligently owned, maintained, entrusted, and/or operated a motor vehicle in a distracted manner so as to cause it to collide with the Plaintiff's vehicle.

ANALYSIS:

"[T]he attorney in an action...may be changed at any time before or after judgment or final determination, as follows: (1) upon the consent of both client and attorney...; (2) upon the order of the court, upon the application of either client or attorney, after notice from one to the other." (CCP § 284; California Rules of Court, rule 3.1362.) The withdrawal request may be denied if it would cause an injustice or undue delay in proceeding; but the court's discretion in this area is one to be exercised reasonably. (Mandell v. Superior (1977) 67 Cal.App.3d 1, 4; Lempert v. Superior Court (2003) 112 Cal.App.4th 1161, 1173.)

In making a motion to be relieved as counsel, the attorney must comply with procedures set forth in CRC, rule 3.1362. The motion must be made using mandatory forms:

1.

1. Notice of Motion and Motion to be Relieved as Counsel directed to the client (MC-051);

2. Declaration "stating in general terms and without compromising the confidentiality of the attorney-client relationship" the reasons that the motion was brought (MC-052); and

3. Proposed Order (MC-053).

2.

The forms must be timely filed and served on all parties who have appeared in the case. (CRC rule 3.1362.) If these documents are served on the client by mail, there must be a declaration stating either that the address where the client was served is their "current residence or business address" or "the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved." (CRC rule 3.1362 subd. (d)(1).)

The court has discretion on whether to allow an attorney to withdraw, and a motion to withdraw will not be granted where withdrawal would prejudice the client. (Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.) Withdrawal is generally permitted unless there is a compelling reason to continue the representation. (Heple v. Kluge (1951) 104 Cal.App.2d 461, 462.)

Counsel filed a Notice of Motion and Motion (MC-051), Declaration in Support of Motion (MC-052) and Proposed Order (MC-053). As reason for the Motion, Counsel states: "Deterioration of Attorney-Client relationship and lost contact. On 06/30/2025 Mr. Garabetian sent a letter requesting that this case is dismissed. Thereafter, we have made several attempts to contact Mr. Garabetian through different avenues, including a private investigator, however, we have not been successful. We made multiple calls and several emails without success regarding the pending signed release." (MC-052, ¶ 2.) The forms were served via mail on the client and electronically served on all other parties who have appeared in this matter on April 27, 2026. (POS.) Counsel confirmed via email in the last 30 days that the client's address is current. (MC-052, ¶ 3(b)(1)(d).)

Trial in this action is currently set for September 8, 2026. Accordingly, to avoid potential prejudice to Plaintiff, the Court will discuss with the parties at the hearing whether a continuance of the trial date is appropriate. The Court otherwise finds that the motion sets forth an adequate basis for withdrawal.

The motion is GRANTED.

RULING:

Counsel Robert L. Booker II's Motion to be Relieved as Counsel is GRANTED.

Counsel will be relieved effective upon the e-filing of the proof of service of the signed order upon the client.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.